

Client Agreement

Volume 7

1. Introduction

This Client Agreement (hereinafter referred to as the "Agreement") is entered into by and between Roco Broker Ltd. referred to as the "Company", and the individual or entity whose name and signature appear at the end of this Agreement or entered his or her personal information during registration and opening an account with Roco Broker Ltd's website. (Hereinafter referred to as the "Client").

This Agreement sets forth the terms and conditions under which the Company will provide the Client with access to foreign exchange (forex) trading services or any other services mentioned in Company's website.

The Operative Agreements shall govern all trading activity and non-trading operations of the Client with the Company and shall be read carefully by the Client. Amongst other things, they set out those matters, which the Company is required to disclose to the Client under the applicable regulations.

2. Definitions

- **Account:** The trading account established by the Client with the Company.
- **Agreement:** This Client Agreement, including all schedules, annexes, and amendments.
- **Base Currency:** The currency in which the Account is denominated.
- **Financial Instruments:** Forex, contracts for differences (CFDs), commodities, indices, and other instruments as may be offered by the Company.
- **Trading Platform:** The software and technology provided by the Company to facilitate trading activities.
- **Abnormal Market Conditions:** The conditions contrary to Normal Markets Conditions, e.g., when there is low liquidity in the market, or rapid price movements in the market, or Price Gaps.
- **Access Data:** The Client's access codes, any login code, password(s), his/her Trading Account number and any information required to make Orders with the Company.
- **Affiliate:** The relation to the Company, any entity controlled directly or indirectly by the Company, any entity that controls directly or indirectly the Company, or any entity



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directly or indirectly under common control with the Company. For this purpose, “control” means ownership of a majority of the voting power of the Company or entity.

- **Agreed Process:** Means any process agreed between the parties in respect of a Dispute other than the Procedure for Dispute Resolution, as may be amended between the parties.
- **Ask:** The higher price in the Quote being the price at which the Client may buy.
- **Balance:** The total financial result of all Completed Transactions and depositing/withdrawal operations on the Trading Account.
- **Bid:** The lower price in the Quote being the price at which the Client may sell.
- **Business Day:** Any day between Monday and Friday, inclusive, other than the 25th of December, or the 1st of January or any other holiday to be announced by the Company by email..
- **Business Hours:** Means 7:00 a.m. to 5:00 p.m. (GMT+2) on a Business Day (Monday to Friday).
- **Opening a position and closing the position:** Buying and then selling or selling and then buying.
- **Contract Specifications:** The principal trading terms (Spread, Lot Size, Initial Margin, Hedged Margin etc.) for each Instrument, displayed on the Company’s Website
- **Currency Pair:** the object of a Transaction based on the change in the value of one currency against the other.
- **Client:** shall mean any individual or legal entity (except for stateless persons; individuals under 18 years old; citizens or legal entities of the countries where Roco Broker Ltd. services is not offered) who has submitted the Client Registration Form.
- **Client Information:** Any information or documentation that the Company receives from the Client or otherwise obtains which relates to him/her, his/her Account or the provision or the use of the Services.
- **Client Registration Form:** The form on the Website that a Client shall fill in to create his/her account.
- **Data Delivery Date:** Each date agreed as such between the parties.
- **Dispute:** Means either:
 - a) The conflict situation when the Client reasonably believes that the Company as a result of any action or failure to act breaches one or more terms of the Operative Agreements;
 - or
 - b) The conflict situation when the Company reasonably believes that the Client as a result of any action or failure to act breaches one or more terms of the Operative Agreements

- **Dispute Date:** The date on which a Dispute Notice is effectively delivered by one party to the other party. Each Dispute Notice must be effectively delivered in a manner agreed between the parties for the giving of notices in respect of this Agreement.
- **Dormant and/or Inactive Account:** Any trading account where the Client/account holder/owner of that trading account has not initiated any trading activity and/or inactivity for a period of three (3) consecutive months.
- **Equity:** Means Balance + Floating Profit - Floating Loss.
- **Error Quotes:** are rates received which are transmitted to the Client's Terminal due to a system technical error.
- **Error Quote (Spike):** shall mean an Error Quote with the following characteristics:
 - a) A significant Price Gap; and
 - b) In a short period of time the price rebounds with a Price Gap; and
 - c) Before it appears, there have been no rapid price movements; and
 - d) Before and immediately after it appears that no important macroeconomic indicators and/or corporate reports are released; and
 - e) A significant variance from the market pricing.

The Company has the right to delete Error Quotes (Spikes) from the Server's Quotes Base.

- **Floating Profit/Loss:** Current profit/loss on Open Positions calculated at the current Quotes.
- **Free Margin:** The funds on the Trading Account, which may be used to open a position. It is calculated as Equity Less Necessary Margin.
- **Hedged Margin:** The margin required by the Company sufficient to open and maintain Matched Positions.
- **Indicative Quote:** shall mean a Quote at which the Company has the right not to accept any Instructions or execute any Orders.
- **Initial Margin:** The margin required by the Company to open a position.
- **Instruction:** The instruction from the Client to the Company to open/close a position or to place/modify/delete an Order.
- **Illicit Profit:** Profit which has been generated as a result of an Event of Default, Error Quote or breach of any of the terms of the Operative Agreements.
- **Leverage:** shall mean 1:25, 1:50, 1:100, 1:200, 1:500, 1:1000 ratio, (other ratios may also be available on the Website) in respect of Transaction Size and Initial Margin. 1:100 ratio means that in order to open a position the Initial Margin is one hundred times less than Transaction Size.
- **Liquidity Provider:** Any bank or an ECN, which is streaming tradable prices to the Company.



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- **Long Position:** A buy position that appreciates in value if market prices increase. In respect of Currency Pairs: buying the Base Currency against the Quote Currency.
- **Lot:** A unit of Securities Base Currency or troy oz. of Precious Metal in the Trading Platform.
- **Lot Size:** The number of shares, underlying assets or units of Base Currency, or troy oz. of Precious Metal in one Lot defined in the Contract Specifications.
- **Margin:** The necessary guarantee funds to maintain Open Positions, as determined in the Contract Specifications for each Instrument.
- **Margin Level:** The percentage Equity to Necessary Margin ratio. It is calculated as $(\text{Equity} / \text{Necessary Margin}) * 100\%$.
- **Margin Trading:** The Leverage trading when the Client may make Transactions having far less funds on the Trading Account in comparison with the Transaction Size.
- **Matched Positions:** Long and Short Positions of the same Transaction Size opened on the Trading Account for the same Instrument.
- **Necessary Margin:** The margin required by the Company to maintain Open Positions.
- **Normal Market Conditions:** The market where there are no:
 - a) Considerable breaks in the Quotes Flow in the Trading Platform; and
 - b) Fast price movements; and
 - c) Large Price Gap.
- **Open Position:** A Long Position or a Short Position which is not a Completed Transaction.
- **Operative Agreements or "Regulating documents:** This Client Agreement together with and all account Client Agreements, Policies and Terms of Business, as these may be found in the Regulatory documents and agreements of the Legal section of the Website. The Company may amend operative Agreements from time to time and the last version shall be available by accessing the Website.
- **Order:** An instruction from the Client to the Company to open or close a position when the price reaches the Order Level.
- **Order Level:** The price indicated in the Order.
- **Precious Metal:** Spot gold or spot silver.
- **Price Gap:** means the following:
 - a) The current Quote Bid is higher than the Ask of the previous Quote; or
 - b) The current Quote Ask is lower than the Bid of the previous Quote.
- **Quote:** The information of the current price for a specific Instrument, in the form of the Bid and Ask prices.

- **Quote Currency:** The second currency in the Currency Pair, which can be bought or sold by the Client for the Base Currency.
- **Quotes Base:** Quotes Flow information stored on the Server.
- **Quotes Flow:** The stream of Quotes in the Trading Platform for each Instrument.
- **Rate:** shall mean the following:
 - a) For the Currency Pair: the value of the Base Currency in the terms of the Quote Currency; or
 - b) for the Precious Metal: the price of one troy oz. worth of the Precious Metal against the US dollar or any other currency specified in the Contract Specifications for this instrument.
- **Relevant Amount(s):** shall mean any free Equity in the Client's Trading Account not used for margin purposes.
- **Request:** shall mean a request from the Client to the Company given to obtain a Quote. Such a Request shall not constitute an obligation to make a Transaction.
- **Services:** The services provided by the Company to the Client herein.
- **Short Position:** A sell position that appreciates if market prices fall. In respect of Currency Pairs: selling the Base Currency against the Quote Currency.
- **Spread:** The difference between Ask and Bid.
- **Third party service provider:** refers to an entity that the parties agree will perform all or part of the actions under the relevant provision for both parties.
- **Transaction:** Any contract entered into or executed by the Client or on behalf of the Client arising under this Agreement and the Terms of Business.
- **Transaction Size:** Lot Size multiplied by number of Lots.
- **Written Notice:** All references to a statutory provision include references to:
 - a) Any statutory modification, consolidation or reenactment of it, whether before or after the date of these Operative Agreements, for the time being in force;
 - b) All statutory instruments or orders made pursuant to it; and
 - c) Any statutory provision of which that statutory provision is a re-enactment or modification.

Any words whose meaning is not defined in this Client Agreement shall have the meaning provided in the Terms of Business.

3. Client Representations and Warranties

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3.1 The Client makes the following promises to the Company and agrees that these promises are true each time they give an Instruction or Request:

- a) The information provided to the Company is accurate and complete;
- b) The Client has read and understands the Operative Agreements and the Risk Acknowledgement;
- c) The Client has the authority to enter into these Agreements and fulfill their obligations; d) The Client is acting on their own behalf;
- e) If the Client is a company, the person completing the Client Registration Form is authorized to do so;
- f) The Client's actions comply with all applicable laws and regulations;
- g) The Client agrees to receive information about the Agreements through the Company's Website or other methods the Company chooses;
- h) The Client has regular internet access and agrees to receive updates about terms, fees, and investment risks via the Company's Website;
- i) The Client's transactions are for purposes like speculation, hedging, investing, intraday trading, or managing risk. If the purpose changes, the Client must notify the Company.

3.2 If the Client breaks any of these promises, the Company can cancel or close any positions at its discretion.

4. Scope of Services

4.1. The Company will provide the Client with a Trading Platform and related services to facilitate trading in Financial Instruments.

4.2. The Company may, at its discretion, provide the Client with market information and other services. However, the Client acknowledges that such information does not constitute investment advice. This information is provided solely to enable the Client to make his/her own investment decisions. The Company does not guarantee when the Client will receive information and cannot promise that the Client will get it at the same time as others. Research reports or recommendations may be available on different information services.

4.3. Receive and transmit orders or execute (on an own account basis) orders for the Client in financial instruments.

4.4. Provide Foreign Currency Services provided they are associated with the provision of the Investment Service.

4.5. Provide safekeeping and administration of financial instruments for the account of Client (as and if applicable), including custodianship and related services such as cash/collateral management.

4.6. Provide the Clients access to Investment Research data, which may be relevant for Clients' consideration;

4.7. As long as the Client meets their obligations under the Operative Agreements, the Company can trade with the Client in the Instruments listed on the Company Website. For certain types of Instruments, the Client must agree to any extra agreements or provide additional information requested by the Company. The Company may also share this information with its authorized agents or third parties.

4.8. The Company is under no obligation to monitor or advise the Client on the status of any Transaction; to make margin calls; or to close out any Client's Open Positions. Also The Client shall not be entitled to ask the Company to provide investment advice or to make any statements of opinion to encourage the Client to make any particular Transaction.

4.9. All trade Requests are subject to size considerations. If the requested trade size is larger than the Company is able to fill at any particular moment due to market conditions, then the Order may be executed partially or the entire trade or Order may be rejected at the Company's sole discretion.

4.10. The Client agrees that their trading history on MetaTrader 5 and/or any other platform provided by the company, may be archived by the Company at any time, without notice, into a single summarized line if it exceeds one month. The Client can access their archived trading and non-trading history by requesting it from the Company.

The Company confirms that the Client's original archived trading history will be available upon request. All records of the Client's trading and non-trading activities will be kept for at least five years after the end of the business relationship, in accordance with the law.

4.11. The Company can suspend, close, or reverse any Transaction due to misconfiguration, technical error, or suspected fraud, manipulation, arbitrage, or deceitful activity in the Client's account(s). In these cases, the Company can take back any profits and charge any costs that it believes were improperly gained. The Company will not be responsible for canceling any Transactions or profits or for any damages or losses resulting from these actions.

4.12. The Client agrees to provide the Company with all necessary information, including name, address, place of residence, date and place of birth, account number, and any additional documents or information as requested. The Client consents to the Company, which is legally registered as a data controller, using their personal data for identification, administration, and other business purposes necessary to meet legal and contractual obligations. The Company may share this personal data with auditors, lawyers, financial consultants, and other service providers they work with.

5. Commencement

5.1 The terms of the Operative Agreements shall be considered accepted unconditionally by the Client on the date on which the Client receives notice from and shall continue unless or until terminated by either party.

5.2 This Agreement is an initial service agreement which relates to a series of successive or separate operations including, without limitation, Transactions in Instruments.

5.3 The Client has no right to cancel the Agreement on the basis that it is a distance contract.

6. Account Opening and Management

6.1. The Client must complete the Company's account opening process and provide all required documentation. The Company reserves the right at its absolute discretion to accept or reject the Client subject to all documentation requested that has been received by the Company, properly and fully completed by the Client.

6.2 The Company has the right to request a minimum initial deposit to allow the Client to start using his Trading Account.

6.3. The Client is responsible for the security and confidentiality of their Account credentials and must notify the Company immediately if they suspect any unauthorized use.

6.4. The Company reserves the right to close the Client's Account in accordance with this Agreement and its internal policies.

7. Trading Conditions and Execution

7.1. Orders are executed at the prices offered through the Trading Platform, subject to market conditions.

7.2. The Client acknowledges that trading hours and market holidays may affect the execution of orders.

7.3. The Company prohibits scalping or any trading strategy that results in excessive orders being placed and immediately closed within a short time span, such as:

- Opening and closing positions within a period of 60 seconds or less, unless otherwise specified in writing by the Company.

7.4. The Client acknowledges that slippage may occur under certain market conditions, and if such slippage results from the Client opening an excessive number of identical positions with high volume lots simultaneously, this type of slippage is not acceptable to the Broker. The Broker shall not be held liable for any resulting losses or discrepancies, nor shall any compensation be provided.

7.5. The Client shall not engage, directly or indirectly, in any abusive, manipulative, or unfair trading activity including, but not limited to:

- a) exploiting or attempting to exploit trading session opening/closing times, market open/close gaps, rollovers, holidays, or symbol-specific trading hours;
- b) exploiting or attempting to exploit negative balance protection, stop-out mechanics, margin close-out rules, execution delays, price feed discrepancies, or account reset features;
- c) exploiting or attempting to exploit leverage, including the opening of positions with the intent to benefit from asymmetric loss absorption, excessive exposure, or any strategy designed to create artificial risk transfer to the Company.
- d) trading around high-impact news releases, economic announcements, or other market-moving events with the intent to exploit widened spreads, slippage, price gaps, execution delays, or abnormal volatility;

7.6. Without limitation, the following shall be deemed prohibited conduct:

- a) placing trades immediately before or after market open/close where the purpose is to profit from abnormal pricing, widened spreads, illiquidity, or execution asymmetry;
- b) using multiple accounts, opposite positions, delayed execution, or coordinated trading patterns to generate risk-free or low-risk profit from negative balance protection or stop-out

events;

c) excessive or abusive use of leverage, including position sizing or sequencing that the Company reasonably considers intended to exploit market gaps, slippage, or account protection mechanisms rather than genuine market risk.

7.7. Where the Company reasonably determines that the Client has engaged in any conduct described in this clause, the Company may, without prior notice and in addition to any other rights under this Agreement:

- a) refuse, cancel, reverse, amend, or close any affected orders or positions;
- b) cancel or adjust any profits, credits, rebates, bonuses, or balances arising directly or indirectly from such conduct;
- c) recover any amounts paid or credited as a result of such conduct;
- d) apply appropriate leverage restrictions, margin increases, or account limitations;
- e) suspend or terminate the Client's account.

7.9. Any negative balance protection offered by the Company, if applicable, shall be provided as a client protection measure only and shall not apply to losses, balances, or compensation arising from abusive, fraudulent, manipulative, or otherwise prohibited conduct.

causing, or attempting to cause, a negative balance in the Client's Account through the use of leverage, market gaps, volatile market conditions, slippage, or any other similar mechanism; in such case, the Client shall remain fully liable for the negative balance and the Company shall have the right to deduct, set off, recover, or otherwise claim such amount from any available funds, balances, or future deposits of the Client, to the fullest extent permitted by applicable law.

7.10. The Client acknowledges that the Company may monitor trading behavior for patterns inconsistent with normal market usage and may treat such patterns as evidence of abuse, including where a strategy targets execution timing, market opening/closing conditions, or the operation of margin and negative balance protections.

7.10. The Company reserves the right to refuse any order that does not comply with the terms of this Agreement or the Company's policies.

8. Fees, Commissions, and Charges

8.1. The Client agrees to pay all fees, commissions, and other charges as specified in the Company's fee schedule, which may be amended from time to time without prior Written Notice to the Client.

8.3. The Company may deduct fees, commissions, and other charges directly from the Client's Account.

8.4. The Client agrees in the event that his/her remaining Trading Account Balance is up to 1 EUR/USD or the equivalent to EUR/USD per account and his/her Trading Account is closed or inactive for more than 90 calendar days, then the Company shall have the right to deduct this remaining Trading Account Balance and use it for charity purposes at its absolute discretion.

8.6. The Client shall be solely responsible for all filings, tax returns and reports on any Transactions which should be made to any relevant authority, whether governmental or otherwise, and for payment of all taxes (including but not limited to any transfer or value added taxes), arising out of or in connection with any Transaction.

8.7. In case the Client performs a withdrawal request without any trading activity from the last deposit made or if any other form of abuse is found the Company reserves the right to:

- a) Charge the Client the equivalent amount of any deposit fees incurred, or
- b) 3% of the total withdrawal amount.

The Client will be notified via email about processed withdrawal request and applied charges.

8.8. The Client acknowledges and agrees that the Company will not pay interest to the Client on funds located in Client accounts.

9. Leverage and Margin Requirements

9.1. The Client may utilize leverage to trade Financial Instruments, subject to the Company's policies.

9.2. The Client must maintain sufficient margin in their Account at all times. The Company reserves the right to liquidate positions if the margin level falls below the required threshold.

9.3. causing, or attempting to cause, a negative balance in the Client's Account through the use of leverage, market gaps, volatile market conditions, slippage, or any other similar mechanism; in such case, the Client shall remain fully liable for the negative balance and the Company shall have the right to deduct, set off, recover, or otherwise claim such amount from any available funds, balances, or future deposits of the Client, to the fullest extent permitted by applicable law.

10. Conflicts of Interest and Material Interests

10.1 When the Company deals with or on behalf of the Client, the Company, or its affiliates, might have interests or relationships that affect the transaction or conflict with the Client's interests. For example, the Company may:

a) Buy from or sell to the Client for its own account; b) Match the Client's transactions with those of other clients; c) Hold positions in the Instruments it offers the Client; or d) Provide advice or services to other clients who have conflicting interests.

10.2 The Client agrees that the Company can proceed with transactions as it sees fit, even if there are conflicts of interest, without notifying the Client first. Employees of the Company must follow a policy of independence and ignore any conflicts or material interests when advising the Client.

11. Risk Disclosure

11.1. The Client acknowledges that trading in Financial Instruments involves significant risk of loss and that they may lose more than their initial investment.

11.2. The Client should not engage in trading unless they fully understand the risks involved and have sufficient financial resources to bear such risks.

12. Data Protection and Privacy

12.1. The Company will collect, use, and protect the Client's personal data in accordance with its Privacy Policy, which is available on the Company's website.

12.2. The Client consents to the processing of their personal data by the Company and its affiliates for the purposes of this Agreement.

13. Communication and Reporting

13.1. All communications between the Company and the Client will be conducted through the Company's designated communication channels, which are:

- a) Trading Platform internal mail;
- b) Email;
- c) Post; or
- d) Information published in the Company Website.

13.2. The Company will provide the Client with regular account statements and trade confirmations.

13.3 All contact details provided by the Client, e.g., address or email address as last notified shall be used as applicable. The Client agrees to accept any notices or messages from the Company at any time.

13.4. Any such Written Notice shall be deemed to have been served:

- a) If sent by email, within one hour after emailing it;
- b) If sent by Trading Platform internal mail, immediately after sending it;
- c) If sent by post, seven calendar days after posting it;
- d) If posted on the Company news section on the Website, within one hour after it has been posted.

14. Complaints and Dispute Resolution

14.1. The Client may submit complaints to the Company in writing. The Company will address complaints in accordance with its Complaints Handling Procedure.

14.2. Any disputes arising from this Agreement will be resolved through arbitration in accordance with the rules of COMOROS UNION , unless otherwise agreed by the parties.

15. Amendments and Termination

15.1. The Client acknowledges that the Company has the right to unilaterally modify the terms and conditions of the Operative Agreements at any time and at its sole discretion, giving to the Client Written Notice by email and/or by posting the modification on the Company Website.

15.2. Either party may terminate this Agreement by giving "30 days" written notice to the other party.

15.3. Upon termination of this Agreement, the Company shall be entitled without prior notice to the Client to cease the Client access to the Trading Platform.

15.4. Upon termination of this Agreement, all amounts the Client owes the Company become immediately due, including: a) All unpaid fees, charges, and commissions; b) Any costs related to ending this Agreement and transferring the Client's investments to another firm; c) Any losses and expenses from closing out Transactions or settling obligations on the Client's behalf.

15.5 The Company reserves the right to disable the Client's account without notice if it makes an unusually high number of incorrect requests, causing strain on the Company's servers and affecting other clients' trading experience. These erroneous requests may include, but are not limited to, invalid stops or modifications, incorrect Take Profit or Stop Loss orders, exceeding volume limits or number of orders, and requests without sufficient account funds.

16. Limitations of Liability and Indemnity

16.1 The Company is not responsible for any losses or expenses the Client incurs due to: a) Errors or failures in the Trading Platform or delays caused by the Client Terminal; b) Transactions made through the Client Terminal; c) The Company's inability to meet its obligations due to circumstances beyond its control; or d) Actions, inactions, or negligence by any third party.

16.2. The Client must compensate the Company for any liabilities, costs, claims, demands, and expenses that arise directly or indirectly from the Client not fulfilling their obligations. The Client agrees to indemnify and hold the Company harmless from any claims, losses, or damages arising from the Client's breach of this Agreement.

16.3. The Company will not be liable for any special, indirect, or consequential losses, loss of profits, loss of opportunities (including due to market changes), costs, expenses, or damages the Client may face unless otherwise agreed upon in the Terms of Business.

17. Personal Data and Recording of Telephone Calls



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17.1 The Company may use, store, or process the Client's personal information to provide Services.

17.2 By agreeing to this, the Client allows the Company to share the Client's information with third parties necessary for delivering Services or handling operations like refunds.

17.3 Telephone calls between the Client and the Company may be recorded. These recordings belong to the Company and are considered final proof of what was said. The Client agrees that the Company can provide transcripts of these recordings to courts, regulatory, or government authorities.

18. Consent to Direct Contact

The Client agrees that the Company may contact them directly by phone or otherwise to market financial services and products.

19. Confidentiality and Waiver

The information the Company holds about the Client is confidential and used only to provide Services. Confidential information will be protected unless it is already public, legally owned by the Company, or not bound by confidentiality when received. Confidential information can only be shared:

- a) When required by law or requested by authorities or courts;
- b) To investigate or prevent fraud or illegal activities;
- c) To Company staff who need the information to perform their duties or third parties providing Services;
- d) For related services or managing the Client's Trading Account, such as credit checks; e) At the Client's request or with their consent;
- f) To the Company's consultants, lawyers, and auditors, who must also keep the information confidential;
- g) In legal proceedings between the Company and the Client;
- h) In any public dispute between the Company and the Client.

20. Default

20.1. An "Event of Default" happens if:

- a) The Client fails to provide required Initial Margin, Hedged Margin, or any other payment due;
- b) The Client does not meet any obligation to the Company;

- c) A third party starts bankruptcy proceedings (for individuals) or winding-up proceedings (for companies) against the Client, or if the Client makes an arrangement with creditors or similar;
- d) Any statement or promise made by the Client becomes false;
- e) The Client cannot pay their debts when they are due.
- f) The Client (if an individual) dies or becomes mentally incapacitated;
- g) Any situation where the Company believes action is needed such as The Client breaches any terms and conditions of this Agreement or violates any applicable laws, regulations, or trading rules.
- h) The Client engages in any unlawful or prohibited activities including but not limited to fraud, market manipulation, swap-arbitrage, or other deceitful activities; any activities that may disrupt fair market operations.
- i) The Client trades excessively without a legitimate purpose, relies on price delays or arbitrage, or abuses the market.

Actions on Default

20.2 If an Event of Default occurs, the Company can, at its discretion and without prior notice:

- a) Close all or some of the Client's positions at current prices;
- b) Charge the Client's account for any amounts due to the Company;
- c) Close any or all of the Client's accounts with the Company;
- d) Refuse to open new accounts for the Client;
- e) Adjust the account balance to remove any improper profits.

Handling of Remaining Balance

20.3 If the Client dies the remaining balance will be sent to the next of kin or qualifying person according to the law, once the Company receives proof of their right to claim the balance.

21. Governing Law and Jurisdiction

21.1. This Agreement shall be governed by and construed in accordance with the laws of Comoros Union.

21.2. Any legal action or proceeding arising under this Agreement shall be brought exclusively in the courts of Comoros Union.

21.3 In the event of any dispute between the Client and the Company, the Client agrees to first attempt to resolve the matter amicably through the Company's established dispute resolution procedures. This includes, but is not limited to, disputes regarding system errors, bugs, order execution issues, discrepancies in trade confirmations, incorrect pricing, or any other technical issues that may arise. The Client acknowledges and agrees that the Company will provide a reasonable opportunity to investigate and resolve the dispute in accordance with its internal policies and procedures before pursuing any further legal action or remedies.

21.4 If the dispute is not resolved as described, either party can start arbitration.

21.5 For any disputes related to the Agreement, the following arbitration rules apply:

- a) The arbitration will have one arbitrator appointed by the Mwali International Services Authority (MISA).
- b) The arbitration will take place in Comoros Union under the Uniform Arbitration Act of 11 March 1999 and/or Comoros Investment Law (2007).
- c) The proceedings will be in English.
- d) Enforcement: Arbitral awards, whether domestic or foreign, can be enforced in Comoros under local law and the New York Convention when applicable.

21.6 The Client agrees to waive any immunity from legal proceedings, including:

- a) Immunity from lawsuits or arbitration;
- b) Jurisdiction of courts;
- c) Relief like injunctions or property recovery;
- d) Attachment of assets before or after judgment;
- e) Execution of any judgment.

The Client accepts that these proceedings can affect any of their assets, regardless of their use or intended use.

22. Use of the Trading Platform and Safety

22.1 The Client must not allow unauthorized access to the Trading Platform. The Company can limit or cancel the Client's access if it suspects misuse.

22.2 The Client must not do anything that might harm or disrupt the Trading Platform.

22.3 The Client can use the information from the Trading Platform for personal purposes like storing or printing, but cannot share or reproduce it for others without the Company's permission. The Client must also keep any copyright or trademark notices intact.

22.4 The Client must keep his or her Access Data secret and not share it with anyone.

22.5 The Client must immediately inform the Company if they think their Access Data has been shared with unauthorized people.

22.6 The Client must cooperate with any investigation into misuse of their Access Data.

22.7 The Client is responsible for all actions taken with their Access Data and all instructions given using it.

22.8 The Company is not responsible if unauthorized people access the Client's information through the internet or other means.

22.9 If the Company suspects fraud or other misconduct, it can close all positions in the Client's account, adjust or remove any profits, and refuse further requests or terminate agreements with the Client.

23. Trading Benefits

If the Client joins a bonus, promotion, or contest offering trading benefits (called the "Trading Benefits Scheme"), the following rules apply:

- a) The Client can only participate in one Trading Benefits Scheme at a time, unless the scheme's terms say otherwise.
- b) The Company is not responsible for any margin calls or losses if the trading benefit is removed for any reason.
- c) The Company can change, suspend, or cancel the Trading Benefit Scheme at any time without notice. The Company will not be liable for any impact from these changes.
- d) The company can close any position associated to a specific Trading Benefit Scheme such as occasional promotions or bonuses.
- e) If the Company suspect's fraud or misuse related to the Trading Benefit Scheme, it can cancel all transactions and profits related to it.
- f) The Company can disqualify anyone from the Trading Benefit Scheme if it suspects misuse or breaches of the agreement and cancel their profits. The Company will not be liable for any consequences of this disqualification.
- g) Disputes will be resolved according to the Company's Dispute Resolution procedure.
- h) In case of any language differences, the English version of the terms will be the official one.

24. Miscellaneous Provisions

24.1. Force Majeure:

The Company may decide that a Force Majeure Event has occurred and will inform the Client as soon as possible. A Force Majeure Event includes:

- a) Strikes, riots, terrorism, war, natural disasters, accidents, fires, floods, storms, power outages, equipment failures, civil unrest, legal changes, or lockouts that prevent the Company from maintaining a stable market;
- b) The suspension or closure of any market, or changes to trading conditions in that market.

If a Force Majeure Event occurs, the Company can, without prior notice and at its discretion:

- a) Increase margin requirements;
- b) Close any or all of the Client's open positions at prices the Company deems fair;
- c) Suspend, freeze, or change any terms of the Agreements if the event makes it impossible or impractical to follow them;
- d) Take other actions it considers reasonable in the situation.

The Company shall not be liable for any delays or failures in performance due to circumstances beyond its control.

24.2. Assignment: The Client may not assign their rights or obligations under this Agreement without the Company's prior written consent.

24.3. Severability: If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

By opening an account with RocoBroker, the Client acknowledges and agrees to be bound by the terms and conditions of this Agreement.

Risk Disclosure Statement

Introduction:

Trading foreign exchange (forex) on margin carries a high level of risk and may not be suitable for all investors. The high degree of leverage can work against you as well as for you. Before deciding to trade foreign exchange, you should carefully consider your investment objectives, experience level, and risk tolerance. There is a possibility that you may lose some or all of your initial investment, and you should not invest money that you cannot afford to lose.

Key Risks:

1. ****Leverage Risks:**** High leverage can magnify both gains and losses. Trading on margin means you can potentially lose more money than you invested.
2. ****Market Volatility:**** Forex markets can be highly volatile. Prices may fluctuate rapidly in short periods due to various factors such as economic news, geopolitical events, and market sentiment, potentially resulting in significant losses.
3. ****Liquidity Risks:**** Under certain market conditions, it may be difficult or impossible to liquidate a position. This can happen, for example, when the market moves sharply or when trading is halted due to market disruption.
4. ****Operational Risks:**** Forex trading involves complex systems and technologies. Any system failures may lead to trading interruptions, delays, or unexpected losses.
5. ****Credit Risk:**** Your counterparty in a forex trade may default on their contractual obligations, leading to potential financial losses.
6. ****Regulatory Risk:**** Forex trading is subject to laws and regulations that may change and affect your trading activities. Regulatory changes may impact the forex market, your ability to trade, or the instruments you can trade.
7. ****Interest Rate Risk:**** Changes in interest rates can impact forex prices, potentially leading to unexpected gains or losses.



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334 90th South Street, New Cairo, Egypt.



Registered address: Bonovo Road, Fomboni,
Island of Mohéli, Comoros Union.



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Client Acknowledgment and Legal Disclaimer:

This document is not intended to constitute financial advice and does not take into account your individual circumstances. The information contained herein is provided “as is” without warranty of any kind. By signing this document, you confirm that you have read and fully understand the risks involved in forex trading. You acknowledge that forex trading carries a high level of risk and may result in the loss of all your invested capital.

Privacy Policy

This document describes the main aspects of the Global Data Protection Regulation (GDPR) and explains the rights and obligations of the Clients from Roco Broker Ltd, located on Bonovo Road, Fomboni, Island of Mohéli, Comoros Union, regulated by the Mwali International Services Authority (MISA) under registration number HT01024109 and License number BFX2024190.

At Roco Broker, we are committed to protecting your privacy and ensuring that your personal information is handled in a safe and responsible manner. This Privacy Policy explains how we collect, use, disclose, and protect your personal information when you visit our website and use our services. It is essential to read this document so that you are fully aware of how and why we are using your data.

By using our website and services, you agree to the collection and use of your information as described in this policy.

1. Information We Collect

We collect personal information that you provide directly to us when you register for an account, use our services, or interact with our website. This information may include:

- **Personal Identification Information:** Name, email address, phone number, postal address, date and place of birth, gender, and nationality.
- **Financial Information:** Bank account details, payment card information, tax identification number, financial status, income, trading activity, investment preferences, and risk tolerance.



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- **Authentication Information:** Username, password, and security information used for account access.
- **Transaction Information:** Trading history, account balances, and details of financial transactions made on our platform.
- **Technical Information:** IP address, browser type, device type, operating system, browsing behavior, and other technical data collected automatically via cookies and other tracking technologies.

2. How We Use Your Information

We use the information we collect for various purposes, including:

- **To Provide Services:** To process your transactions, manage your accounts, and provide you with brokerage services, including executing trades and managing your portfolio.
- **To Communicate:** To send you account-related notifications, updates, and marketing communications (subject to your preferences).
- **To Improve Our Website and Services:** To analyze usage patterns, enhance the user experience, and develop new features.
- **To Comply with Legal and Regulatory Obligations:** To meet our regulatory and legal requirements, including anti-money laundering (AML) and know your customer (KYC) obligations.
- **To Prevent Fraud:** To detect and prevent fraud, money laundering, and other illegal activities.
- **For Security:** To maintain the security and integrity of our website and services.

3. How We Share Your Information

We may share your personal information with third parties under the following circumstances:

- **Service Providers:** We may share your data with third-party service providers that assist us in operating our website and providing our services (e.g., payment processors, IT service providers, and customer support vendors).

- **Regulatory Authorities:** We may disclose your information to regulatory authorities, law enforcement, or other government agencies if required by law or to comply with legal obligations.
- **Business Transfers:** In the event of a merger, acquisition, or sale of assets, your information may be transferred as part of the transaction.
- **With Your Consent:** We may share your information with other third parties with your explicit consent.

4. Data Security

We take the security of your personal information seriously. We implement industry-standard security measures, including encryption and secure protocols, to protect your data from unauthorized access, loss, or alteration. However, no method of transmission over the internet or electronic storage is completely secure, so we cannot guarantee absolute security.

5. Your Rights and Choices

Depending on your jurisdiction, you may have the following rights regarding your personal data:

- **Access:** You can request access to the personal information we hold about you.
- **Correction:** You can request that we correct any inaccurate or incomplete information.
- **Deletion:** You can request that we delete your personal information, subject to certain exceptions (e.g., legal or regulatory obligations).
- **Opt-Out of Marketing:** You can opt out of receiving marketing communications from us by following the unsubscribe instructions in our emails or by contacting us directly.
- **Data Portability:** You may request a copy of your personal data in a commonly used format for transfer to another service provider.
- **Withdraw Consent:** Where processing is based on your consent, you may withdraw your consent at any time, without affecting the lawfulness of processing before the withdrawal.

To exercise any of these rights, please contact our Data Protection Officer at dpo@rocobroker.com

6. Cookies and Tracking Technologies

We use cookies and similar tracking technologies to improve your experience on our website. These technologies help us understand how you use our website, remember your preferences, and deliver targeted advertisements.

You can control the use of cookies through your browser settings. However, disabling cookies may affect your ability to use some features of our website.

7. Data Retention

We retain your personal information only for as long as necessary to fulfill the purposes outlined in this Privacy Policy or to comply with legal or regulatory obligations. After that period, your information will be securely deleted or anonymized.

8. Third-Party Links

Our website may contain links to third-party websites or services. This Privacy Policy does not apply to those websites, and we are not responsible for their privacy practices. We encourage you to review the privacy policies of any third-party websites you visit.

9. Changes to This Privacy Policy

We may update this Privacy Policy from time to time to reflect changes in our practices, legal requirements, or the services we provide. Any changes will be posted on this page with an updated "Effective Date." We encourage you to review this Privacy Policy periodically to stay informed about how we are protecting your information.

11. Contact Us

If you have any questions or concerns about this Privacy Policy or our data practices, please contact us at:

Roco Broker Ltd.

Address: Bonovo Road, Fomboni, Island of Mohéli, Comoros Union
dpo@rocobroker.com / info@rocobroker.com
+44 7401 131099



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Anti-Money Laundering (AML) Compliance

1. Introduction

This Anti-Money Laundering (AML) Compliance Document sets forth the policies and procedures adopted by "Roco Broker Ltd." providing services under the "Roco Broker" trademark to comply with applicable laws and regulations aimed at preventing money laundering and terrorist financing.

This document outlines our policies and procedures to comply with the relevant AML laws and regulations.

2. AML Policy Statement

Roco Broker Ltd. is committed to preventing the use of its services for money laundering or terrorist financing. We have implemented a comprehensive AML program designed to ensure compliance with the relevant laws and regulations, including the Bank Secrecy Act (BSA), the USA PATRIOT Act, and other applicable laws and regulations.

Our policy is to detect and prevent money laundering and terrorist financing through a robust AML compliance program that includes due diligence, continuous monitoring, and reporting of suspicious activities.

3. Customer Identification Program (CIP) or Know Your Customer (KYC) Procedures

- **Verification:** All new clients must provide valid identification documents. Acceptable forms of identification include government-issued IDs, passports, or other official documents.
- **Information Required:** We will collect and verify information including name, date of birth, and identification number for each client.
- **Risk Assessment:** Clients are assessed for risk level based on factors such as the nature of their business, transaction patterns, and geographic location.
- **Enhanced Due Diligence:** For customers considered high-risk, additional information will be gathered and verified.
- **Verification of Politically Exposed Person (PEP) Status:** We will screen users to verify whether they are Politically Exposed Persons (PEPs). This involves checking clients against relevant PEP

databases and conducting enhanced due diligence for those identified as PEPs, including obtaining information on their source of wealth and the nature of their transactions.

4. Screening of Users and Transactions Against Sanctions Lists

We will conduct regular screening of all users and transactions against national and international sanctions lists, including, but not limited to, the Office of Foreign Assets Control (OFAC), United Nations, European Union, and any other relevant sanctions lists.

In the event of a match, we will take appropriate actions, including blocking transactions, freezing accounts, and reporting to the relevant authorities as required by law.

5. Monitoring and Reporting

- **Transaction Monitoring:** We continuously monitor transactions for suspicious activity using both automated and manual processes.
- **Suspicious Activity Reports (SARs):** Any suspicious activity identified during monitoring will be reported to the appropriate authorities through a Suspicious Activity Report (SAR).
- **Currency Transaction Reports (CTRs):** We will file Currency Transaction Reports (CTRs) for any transaction or series of transactions that exceed the reporting threshold.

6. Record Keeping

- **Documentation:** All records related to AML compliance will be retained for a minimum of five years.
- **Accessibility:** Records will be maintained in a manner that allows for prompt retrieval and review.
- **Data Security:** Records are stored securely and are accessible only to authorized personnel.

7. Training and Awareness

- **Employee Training:** All employees will receive regular training on AML laws, regulations, recognizing suspicious activities, and internal policies. Training will be provided annually and upon changes in regulations or internal policies.
- **Awareness Program:** Employees will be encouraged to report any suspicious activities and are assured of no reprisals for doing so.

8. Independent Audit & Review

- **Audit:** An independent review of the AML program will be conducted annually to assess its effectiveness and compliance with applicable laws and regulations.

- **Findings:** The findings of the independent review will be reported to senior management, and corrective actions will be taken if necessary.

9. Compliance Officer

- **Designation:** Our compliance officer has been designated as the AML Compliance Officer responsible for overseeing the implementation and enforcement of the AML program.
- **Responsibilities:** The Compliance Officer is responsible for ensuring that all AML policies and procedures are up-to-date and effectively implemented. The Compliance Officer oversees all aspects of the AML program, including training, monitoring, and reporting.

10. Client Education

- **Informative Resources:** We provide resources to educate clients about the risks of money laundering and the importance of compliance.
- **Customer Support:** Clients can reach out to our support team with any questions or concerns regarding our AML policies.